

**SYNTHETIC COURT DOCUMENT — FICTIONAL CASE — NOT AN
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UNITED STATES DISTRICT COURT FOR THE WESTERN DISTRICT OF VIRGINIA

Civil Action No. SYN-WDVA-25-CV-0733

Dr. Dana North Police-Practices Expert Report and Deposition Excerpts

Report dated October 24, 2025; designated with Ellison's December 12, 2025 opposition.

Assignment and qualifications

I was retained by Mara Ellison to evaluate police practices during the February 3, 2025 welfare encounter. I have worked in patrol training, crisis response, and use-of-force review and have taught officers to distinguish noncompliance from an immediate safety threat. My compensation is not contingent on outcome.

I reviewed the dispatch call, reports, body-camera exports, device download, photographs, medical records, departmental policies and training, depositions, and discovery materials identified in my reliance list. I do not offer an opinion about witness credibility, legal jurisdiction, or whether a jury must accept Ellison's account.

My opinions are conditional where facts conflict. The recordings do not reliably show the hands from 19:53:08 through 19:53:22. I therefore analyze an Ellison-favorable account and, separately, Rusk's asserted account. I do not treat an obscured frame, a command, or movement noise as a machine-readable substitute for missing evidence.

North report — dispatch and welfare-call tactics

The call began at 19:42:11. Iris Ellison reported a medication and mental-health crisis, no known weapon, and no threat to another person. Dispatch transmitted a welfare-check purpose at 19:47:36. Those facts did not guarantee a risk-free contact, but they supported a planned, communicative approach rather than immediate criminal enforcement.

Recognized crisis-response practices include slowing the encounter when feasible, avoiding unnecessary crowding, stating the purpose of contact, using one speaker, seeking medical support, and reassessing before escalating force. The open apartment breezeway presented a railing and stairs, yet the record identifies no bystander in immediate danger and no reported weapon.

Rusk arrived at 19:52:14 and contacted Ellison at 19:52:48 while she was seated with empty hands visible. On the plaintiff-favorable facts, time and distance remained available for additional communication before wrist control began at 19:53:02. My opinion is not that officers must leave every distressed person untouched. It is that the known welfare purpose and low reported threat were material to proportional tactics and could not properly be discarded merely because Ellison did not promptly comply.

North report — seizure and resistance categories

Rusk concedes that a seizure began when he grasped and restrained Ellison's wrist. Police training uses resistance labels for reporting, but sound decision-making requires describing the conduct rather than allowing a label to decide the response. Pulling from a painful grip, stiffening, failing to present an arm, striking an officer, and reaching for a weapon involve different levels of objective danger.

Under Ellison's account, she recoiled and pulled because the wrist hold hurt. She did not strike, grab, flee, or move toward Rusk's duty belt. That behavior was noncompliant but did not itself present an immediate safety exigency. Officers could maintain distance, adjust grip, explain the plan, or use lower-force control while continuing assessment.

Under Rusk's account, Ellison actively twisted, struck his forearm, and reached toward equipment. If those acts occurred and were reasonably perceived, they would materially change the threat assessment and support prompt physical control. My conditional analysis does not decide which account is true. It makes clear why a court cannot merge them into a generic proposition that “resistance occurred” and then treat every response as justified.

North report — the critical fourteen seconds

From 19:53:08 through 19:53:22, Rusk's body camera is obstructed by close movement and clothing. Vega's offset recording does not reliably show the hands. The audio includes “stop pulling,” “you're hurting me,” commands, a cry, and movement noise. Those sounds document a rapidly changing encounter but do not reveal the alleged forearm strike or belt reach.

One drive-stun conducted-energy-weapon cycle ran from approximately 19:53:16 through 19:53:21 as Rusk forced Ellison down. A drive stun is designed principally to cause localized pain and gain compliance; it is not the same mechanism as separated probes intended to produce neuromuscular incapacitation. Training requires an officer to articulate the objective served and the threat or resistance that made the pain application proportionate at that instant.

On plaintiff-favorable facts, Ellison was unarmed, distressed, pulling but not striking or reaching, and presented no immediate danger. In that circumstance, the cycle during a takedown was disproportionate to the need. On Rusk's asserted facts, an active strike and movement toward the duty belt could justify rapid escalation. The unseen facts drive the divergence; the video does not eliminate it.

North report — proportionality and changing circumstances

Force must be reassessed as circumstances change. A welfare encounter with a seated, unarmed person begins with a different governmental need from an arrest for a violent crime. Physical noncompliance may justify some control without automatically justifying serious or injurious pain. The relevant inquiry includes the severity of suspected conduct, immediate threat, resistance or flight, known distress, officer numbers, positioning, and feasible alternatives.

On the assumed plaintiff facts, no crime precipitated the encounter, there was no flight, two officers were present, Ellison did not threaten anyone, and her pulling did not create access to a weapon. Those circumstances supported restraint and communication rather than a drive-stun cycle. The later ability to handcuff her does not retroactively answer what force was needed seconds earlier, but it is consistent with an encounter that stabilized promptly.

If a factfinder instead credits Rusk's report of a strike and belt reach, the safety interest would rise immediately. A reasonable practices analysis may reach a different result on that version. I do not calculate a blended middle account. The two versions must remain separate so that legal analysis on assumed facts does not masquerade as a credibility determination.

North report — policy, precedent, and opinion limits

The Alder Creek Police Department policy required proportional force, attention to known crisis information, a reason for each conducted-energy application, medical evaluation, and supervisory review. It instructed officers to distinguish low-risk noncompliance from assaultive behavior. Policy compliance is relevant context but does not decide a constitutional claim. An internal rule can be more protective than the Fourth Amendment, while administrative approval cannot resolve factual disputes or confer qualified immunity.

Lieutenant Marcus Hale's review preserved Rusk's asserted strike and belt reach, Vega's inability to see the hands reliably, the single cycle, and medical care. It did not recover an unobstructed image or determine which sworn account a civil jury must accept. I relied on the underlying materials rather than treating the administrative disposition as a factual substitute.

Counsel also asked whether Ellison's version fits longstanding practices and case principles. The court decides law. Materials provided to me include *Graham v. Connor*, *Armstrong v. Village of Pinehurst*, *Smith v. Ray*, and *Meyers v. Baltimore County*, all available before this event. I use them to explain why reasonable officers were taught that distress and noncompliance do not alone establish immediate danger; I do not give the ultimate clearly-established-law conclusion.

The assumed version must remain particular: one drive-stun cycle and a takedown of an unarmed, distressed welfare-check subject who pulled from wrist control but did not strike, grab, flee, reach for equipment, or pose immediate danger. Changing those facts requires reconsideration.

North report — alternatives and causation limits

Feasible lower-force options included maintaining an offset position, using a single speaker, explaining the medical purpose, pausing before hands-on control, repositioning away from the railing, modifying wrist control, and allowing Vega to assist without a conducted-energy cycle. I do not claim officers must exhaust a checklist or select the least intrusive conceivable option. Alternatives matter because they illuminate whether the chosen escalation was proportional to an immediate need.

I also do not opine that a different tactic would certainly have ended the encounter without physical contact. Human behavior cannot be predicted that precisely. On plaintiff-favorable facts, however, the record shows enough time, officer presence, and lack of danger to make additional communication and lower-force control operationally realistic.

The medical findings establish that physical contact caused or accompanied observable injury, but they do not prove hidden movements. I rely on the fixed description of wrist abrasion, two superficial contact burns, shoulder strain, and no fracture. Severity may bear on the totality but does not independently decide proportionality. A constitutional or practices violation need not produce a fracture, and a documented injury does not automatically establish one.

North deposition excerpt — competing hypotheticals

Q. Assume Ellison struck Rusk's forearm and deliberately reached toward his duty belt. Would you still call the cycle disproportionate?

A. Not on the opinion presently stated. Those assumed facts would create an immediate equipment- access concern and materially support rapid control. I would need to evaluate distance, hand position, warnings, and duration, but I do not offer the same categorical practices criticism on that hypothetical.

Q. Assume instead she only pulled from a painful wrist grasp, remained unarmed, and made no strike, grab, flight, or threatening movement. What is your opinion?

A. With no immediate safety exigency, imposing a five-second drive-stun cycle while forcing her down was not proportionate to the low-risk noncompliance and welfare purpose. Reasonable crisis and force practices called for lower-force control and reassessment.

Q. Aren't you simply accepting your client's testimony?

A. I am applying expertise to an expressly identified assumption, as experts routinely do when facts are disputed. I also analyzed the defense assumption and explained that it changes the answer. The jury or court determines what evidence may be credited at the appropriate stage. My report does not use the camera obstruction as affirmative proof that Ellison's version occurred.

North deposition excerpt — video and report terminology

Q. Does the phrase “stop pulling” establish active resistance?

A. It establishes that Rusk issued that command. It may be consistent with pulling, which Ellison herself acknowledges in a limited sense. It does not establish a strike, belt reach, or immediate threat. Police terminology should describe the act and danger rather than rely on a binary label.

Q. Did you enhance the body-camera files?

A. No. Professor Adrian Crane addressed technical and human-factors limits. I viewed the native exports and ordinary playback. I did not use artificial intelligence, pose estimation, frame generation, or interpolation to create unseen hand positions. Any such reconstruction would fall outside my assignment and would risk converting uncertainty into invented evidence.

Q. Are you criticizing Vega for assisting?

A. No. Her decision to approach a close physical encounter is not the challenged force and does not prove she saw the alleged acts. Her candid testimony that the hands were not reliably visible is consistent with the recordings. My opinion concerns Rusk's drive-stun and takedown under fixed hypotheticals, not Vega's mere presence or later handcuffing assistance.

North report — conclusions and reservation

My conclusions are bounded. First, the initial call and visible circumstances supported crisis-response tactics and did not identify a weapon, crime, flight, or immediate threat. Second, noncompliance and pulling must be distinguished from assaultive conduct or equipment access. Third, the recordings do not reliably resolve the critical hand movements. Fourth, on Ellison-favorable facts, one five-second drive-stun cycle during the takedown was disproportionate because she was unarmed and distressed and posed no immediate safety exigency. Fifth, Rusk's asserted strike-and-reach facts would materially alter that assessment.

I reserve the right to respond to genuinely new evidence allowed under the scheduling order. I do not reserve a right to invent detail inside the recorded obstruction. My opinions depend on the materials listed and the assumptions stated on the page where each conclusion appears.

Nothing in this report determines credibility, Rule 56 evidentiary sufficiency, collateral-order jurisdiction, or the ultimate qualified-immunity question. A court applying plaintiff-favorable assumed facts may resolve a legal issue without finding that those events actually occurred. That separation is essential to faithful use of my conditional opinion.